LOUISIANA PUBLIC SERVICE COMMISSION
ADMINISTRATIVE HEARINGS DIVISION

DOCKET NUMBER U-37483

BEAUREGARD ELECTRIC COOPERATIVE, INC., EX PARTE

In re: Application for an increase in rates, approval of Formula Rate Plan, including modifications to standard Terms and Conditions, and for Interim Rate Relief.

RULING ON REQUEST FOR CLARIFICATION OF INTERVENTION

On January 14, 2025, Beauregard Electric Cooperative, Inc. ("BECi") filed its application for an increase in rates, approval of Formula Rate Plan, including modifications to standard Terms and Conditions, and for Interim Rate Relief (the "Application"). The Application was published in the January 17, 2025 edition of the Commission's Official Bulletin with a 15-day intervention period.[1]

Mr. Brian Zelenak timely intervened in Docket No. U-37483 on February 3, 2025. Thereafter, Mr. Zelenak was placed on the Service List for Docket No. U-37483 as an Intervenor. Rule 11 of the Commission's Rules of Practice and Procedure provides that a party can appear through an attorney, as a natural person, or, if a corporation, partnership or association, through a bona fide officer, partner, or full-time employee. The Service List for Docket No. U-37483 does not list Mr. Zelenak as representing anyone other than himself.

On February 17, 2025, BECi filed a Notice of Non-Compliance of Intervention and Request for Clarification of Intervention ("Request"). Rule 12 of the Commission's Rules of Practice and Procedure provides that "[r]egardless of any error in the designation of a pleading by the pleader, it shall be accorded its true status in the proceeding in which it is filed." Rule 10 of

[1] The 15th day after January 17, 2025, was Saturday, February 1, 2025. According to Rule 5 of the Commission's Rules of Practice and Procedure, if the last day to intervene falls on a Saturday, Sunday, or legal holiday, the period runs until the next day which is neither a Saturday, Sunday, or legal holiday. Therefore, the last day to timely intervene in Docket No. U-37483 was Monday, February 3, 2025.

the Commission's Rules of Practice and Procedure provides that "[a]ny party actually in interest may appear in any proceeding … subject to a motion to strike upon a showing that the party has no justiciable or administratively cognizable interest in the proceeding." BECi's Request makes several arguments regarding Mr. Zelenak's interest in the proceeding and whether his intervention conforms with the Commission's Rules of Practice and Procedure. These arguments are the domain of a motion to strike an intervention. However, BECi clearly states in its closing prayer that it seeks

> that the Commission direct Zelenak to clarify his intervention's scope and basis so as to be compliant with the Rules of Practice and Procedure of the LPSC. BECi reserves its rights to seek further relief, including moving to strike the intervention, if warranted after any clarification.

The Tribunal will not consider any arguments regarding Mr. Zelenak's interest in the proceeding or whether his intervention conforms with the Commission's Rules of Practice and Procedure unless presented with a motion to strike Mr. Zelenak's timely intervention. Further, BECi's request for information regarding the "intervention's scope and basis" is the purview of discovery. Accordingly,

HAVING CONSIDERED the Notice of Non-Compliance of Intervention and Request for Clarification of Intervention, filed by Beauregard Electric Cooperative, Inc. on February 17, 2025;

IT IS HEREBY ORDERED that the Request is **DENIED**.

Baton Rouge, Louisiana, this 19th day of February 2025.

Joy Guillot
Administrative Law Judge

cc: Official Service List

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Service List for U-37483
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